

TENTATIVE RULINGS FOR September 23, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

ANLEX ROCK AND MINERALS, INC.

v.

HEATHER ENGLE, et al.
CIVSB2518753, CIVSB2518758, and CIVSB2518796

Motion: Motion to Compel Joinder of Necessary Parties or to Dismiss
Movant: Defendant Mark Ayers
Respondent: Plaintiff Anlex Rock & Minerals, Inc.

PROCEDURAL AND FACTUAL BACKGROUND

In three separate, but since consolidated actions, Plaintiff Anlex Rock & Minerals, Inc. seeks to adjudicate its rights to purported easements across property owned by Defendants Heather Engle, Mark and Cam Ayers, and Fujita Yuki. Defendants own property that is traversed by Kaderka Road, between Irwin Road and Desert Rock Road, in Fort Irwin, California. Anlex has purportedly used Kaderka Road for years to access its property at 42355 Desert Rock Road. That access has since been blocked. Anlex's operative first amended complaints (FAC's) contain claims for (1) prescriptive easement, (2) easement by necessity, (3) equitable easement, (4) declaratory relief, and (5) injunctive relief. In response to the lawsuit, the Ayers also cross-complained against Anlex.

In yet another, preceding, lawsuit (CIVSB2121747), Anlex sued Mr. Ayers, similarly alleging that he owned property along Kaderka Road, but also claiming Mr. Ayers began blocking access to the road in August 2020. Mr. Ayers also purportedly trespassed onto Anlex's property and converted the rocks being mined (the Trespass Action). The action was tried in phases in January and May 2025. During the first phase of trial, a jury found in Anlex's favor on the prescriptive easement claim and also awarded Anlex over a million dollars in damages as to the conversion and trespass causes of action. During the second phase, the Court (with the Honorable

Winston Keh presiding) subsequently found in Anlex's favor on the declaratory relief and injunction claims. (11/21/25 Judgment.)

Mrs. Ayers, Ms. Yuki, Ms. Engle, and Mr. Winston then moved to intervene in the prior action. Mr. Ayers also moved to dismiss for failure to join an indispensable party. The Court (with Judge Keh again presiding), denied the motions to intervene because the claims were untimely, but also because the claims related only to the easement as to Mark Ayers' property. Thus, the court determined the action would not affect the proposed intervenors rights. The motion to dismiss was similarly denied. (9/25/26 and 1/27/26 Minute Orders in CIVSB2121747.)

However, before the formal judgment was entered, Anlex dismissed its claims for quiet title based on the implied in law, prescriptive easement, and equitable easement theories as well as the claims for declaratory and injunctive relief. A seventh, generic, cause of action for "money damages" was also dismissed with prejudice. (11/21/25 Judgment.) In other words, only the conversion and trespass claims remained and judgment was entered on those claims in Anlex's favor. (*Ibid.*)

The Motion to Dismiss

Mr. Ayers now seeks to compel the joinder of necessary and indispensable parties or to dismiss the action based on Anlex's failure to join those parties, namely, the other property owners along the portion of Kaderka Road utilized by Anlex. Mr. Ayers also argues that Anlex has not identified any fixed route, but to the extent the route depends upon land administered by the United States, it cannot be joined and therefore the action should be dismissed.

The motion is supported by a declaration from Mr. Ayers and a request for judicial notice of the FAC against him, the consolidation order, the notice of related case, the request for dismissal and entry of dismissal in the Trespass Action, the Assessor's record for APN 0423-091-06-0000, a reporter's transcript from a hearing in the Trespass Action, and excerpts from a notice of lodging of a judgment in the same case.¹

The motion is opposed by Anlex based on Mr. Ayers's "unclean hands" in that the prior dismissals in the Trespass Action were purportedly done in reliance upon his representations that he would purchase Anlex's property. Escrow was opened and the money deposited, but the day after the dismissal Mr. Ayers attempted to get his money back. Mr. Ayers had also sold his lot, against which the prescriptive easement was sought, but then had title transferred back to himself after the dismissal. Yet Mr. Ayers now relies upon the dismissal of the prior easement claims to show Anlex cannot gain easement rights across the entirety of the roadway needed. Anlex also argues Defendants have changed the course of the roadway and cannot use that conduct to suggest it (Anlex) cannot adequately define the roadway.

DISCUSSION

Code of Civil Procedure section 389, subdivision (a), provides "[a] person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical

¹ Judicial notice of court records is generally proper under Evidence Code section 452, subdivision (d). The Court can also generally take judicial notice of recorded instruments. (*McElroy v. Chase Manhattan Mortg. Corp.* (2005) 134 Cal.App.4th 388, 394.) Since the request in this case is unopposed and since the records appear to consist of court records or (presumably) a recorded instrument, judicial notice should be granted.

matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.”

Subdivision (b) provides if such a person cannot be made a party, “the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable.”

“Failing to name an individual as a real party in interest in the pleading that initiates the action is not a defect. It does not render the pleading defective; it merely defines the parties, leaving out the individual not named.” (*Tracy Press, Inc. v. Superior Court* (2008) 164 Cal.App.4th 1290, 1296.)

Failure to join an “indispensable” party is not “a jurisdictional defect” in the fundamental sense; even in the absence of an “indispensable” party, the court still has the power to render a decision as to the parties before it which will stand. It is for reasons of equity and convenience, and not because it is without power to proceed, that the court should not proceed with a case where it determines that an “indispensable” party is absent and cannot be joined.

(*Id.* at 1298-1299, citations omitted.)

“The controlling test for determining whether a person is an indispensable party is, “Where the plaintiff seeks some type of affirmative relief which, if granted, would injure or affect the interest of a third person not joined, that third person is an indispensable party.” (*Save Our Bay, Inc. v. San Diego Unified Port Dist.* (1996) 42 Cal.App.4th 686, 692 [quoting *Bank of California v. Superior Court* (1940) 16 Cal. 2d 516, 522].)

In this case, the pleadings collectively indicate Anlex must access its property by traveling north easterly on Kaderka Road. The FAC then identifies the five parcels that must be crossed in order to reach Desert Rock Road. (FAC at ¶ 8 [referencing APN No.’s 0423-191-07-0000, 0423-191-21-0000, 0423-191-11-0000, 0423-191-08-0000, and 0423-091-06-0000].) The named-defendants in each of the actions own the properties, except that the owner of APN No. 0423-091-06-0000 is not identified (per the pleadings, Engle owns APN No. 0423-191-08-0000, the Ayers own APN No.’s 0423-191-07-000 and 0423-191-21-0000, and Yuki owns APN No. 0423-191-11-0000).

Therefore, even assuming Anlex were to prevail, it would not obtain easements, prescriptive or otherwise, across the entirety of the roadway to its property. Nevertheless, each of the pleadings only seeks declaratory relief as against each defendant and as to their respective parcels of property identified in the filings (either by express reference to the APN No. or by reference to “Defendant’s Property described herein”). Consequently, and consistent with Judge Keh’s prior ruling, the owner of APN No. 0423-091-06-0000 is not a necessary and indispensable party because the Court can still afford the more specific relief requested via the lawsuits without joinder (that is the Court can adjudicate the relief specifically sought as to each Defendant and their respective parcels identified in the pleadings). The lawsuits would therefore not affect the rights to APN No. 0423-091-06-0000.

Moreover, Mr. Ayers contends he is the owner of APN No. 0423-091-06-0000. (Mark Ayers Decl. at ¶ 2.) As a result, there is no indispensable “party” that was not named in the lawsuits,

even if the lawsuits otherwise do not seek an adjudication as to Mark's other parcel. That is significant because Code of Civil Procedure section 389 addresses the absence of "parties" not the absence of related claims.

While the opposition also suggests that other parcels (APN No.'s 0423-091-04-0000 and 0423-201-19-0000) are also potentially implicated in Anlex's proposed route, Mr. Ayers concedes he is unsure whether Anlex's proposed route even crosses or affects one of those parcels. (Mark Ayers Decl. at ¶ 8.) In any event, no adjudication is sought as to either of the parcels. Overall, the Court finds that the grounds to compel joinder or dismiss have not been shown.

RULING

The Court rules as follows:

1. Denies the motion to compel joinder or to dismiss the action.;
2. Orders Plaintiff as the prevailing party to provide formal notice of the Court's final ruling.

Dated: September 23, 2026

Judge Quintana Winter

**CAROLINA G. RODRIGUIZ and
MAURILIO AMEZCUA**

v.

**FCA US LLC, et al.
CIVSB2612256**

Motion: (1) Motion for Sanctions

Moving Party: Defendant FCA US LLC

Responding Party: Plaintiffs Carolina G. Rodriguez and Maurilio Amezcua

PROCEDURAL/FACTUAL BACKGROUND

On March 24, 2025, Plaintiffs Carolina G. Rodriguez and Maurilio Amezcua filed a Complaint against Defendants FCA US LLC, and Moss Bros. Chrysler Dodge Jeep Ram San Bernardino. At issue is Plaintiffs' purchase of a 2019 Dodge Charger on April 19, 2019. Plaintiff allege cause of action for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2 (against FCA); (2) Violation of Subdivision (b) of Civil Code Section 1793.2 (against FCA); (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2 (against FCA); (4) Breach of the Implied Warranty of Merchantability (against FCA); and (5) Negligent Repair (against Moss Bros.).

On June 9, 2025, Defendants filed a demurrer and motion to strike.

Now before the Court is FCA's motion for sanctions under Code of Civil Procedure section 871.26, subdivision (j)(1), for failure to timely serve mandatory initial disclosures within 60 days after FCA filed a responsive pleading and failing to provide complete information as required. Plaintiffs oppose arguing they complied with initial disclosure requirements. They argue that Plaintiffs cannot be sanctioned for failing to produce documents they do not have. FCA replies that Plaintiffs have failed to comply with section 871.26 because they have not produced any documents, either by the initial disclosure deadline or even to date.

DISCUSSION

Legal Standard – Initial Disclosures

Code of Civil Procedure section 871.26, subdivision (a), provides it applies to civil actions seeking restitution or replacement of a motor vehicle pursuant to section 871.20, which Plaintiffs seek in their Complaint. In addition, section 871.26, subdivision (l), provides the requirements of subdivision (a) apply to civil actions filed on or after January 1, 2025.

Under section 871.26, subdivision (b), parties are to make initial disclosures as set forth in subdivisions (f), (g), and (h), within 60 days of the filing of an answer or other responsive pleading. A plaintiff's required initial disclosures under subdivisions (f) and (g) are as follow:

(f) The plaintiff shall provide the following documents to all other parties pursuant to the timeline set forth in subdivision (b):

- (1) Sales or lease agreement.
- (2) Copy of current registration.
- (3) Any finance information, account information, including payment history and estimated payoff amount, and any loan modification agreements.
- (4) Any repair orders, including to third-party repair facilities or the location of where information relating to repair orders may be found.
- (5) Documents detailing all underlying claimed incidental damages.

- (6) Information pertaining to the market value of the motor vehicle that is currently in the consumer's possession.
- (7) Any written, pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.
- (g) The plaintiff shall provide the following information to all other parties pursuant to the timelines set forth in subdivision (b):
 - (1) Mileage of the motor vehicle as of the date of the disclosure described in subdivision (b).
 - (2) Primary driver or drivers of the motor vehicle.
 - (3) If the motor vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business.
 - (4) Whether the plaintiff is still in possession of the motor vehicle.
 - (5) Address where the motor vehicle is located.
 - (6) Whether the plaintiff is an active or prior member of the Armed Forces.
 - (7) Whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number.
 - (8) Whether the motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification.
 - (9) Dates and mileages for presentations that are not included in the provided repair orders or the location of where the information may be found.
 - (10) Whether the plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.
 - (11) Any need for an interpreter for purposes of a deposition.

Analysis

This is only a motion to compel sanctions under section 871.26, subdivision (j)(1), which provides that unless a plaintiff failing to comply with section 871.26 shows good cause, the Court shall impose sanctions of \$1,500 against the plaintiff's attorney, to be paid within 15 business days, for failure to comply with the document production requirements of subdivision (b).

Here, the deadline for Plaintiffs to respond was August 8, 2025. Plaintiffs state they served their initial responses on August 13, 2025, together with documents. (Khatchadourian Decl. ¶ 3 and Exh. A.) The delay is not demonstrated to be significant to warrant sanctions.

As part of their responses, Plaintiffs stated when a responsive document was not in their possession after a diligent search and reasonable inquiry. They identified where responsive documents and information could be found, including FCA's dealer portal, selling dealer's file, and FCA's affiliated lender, pursuant to FCA's own dealer and data-sharing agreements. (*Id.* at ¶¶ 5.)

Plaintiffs argue that before filing the motion, FCA did not meet and confer regarding deficiencies. Plaintiffs also assert that the day after Plaintiffs served their initial disclosures, FCA's counsel sent a meet and confer letter in advance of the CMC in which it stated that it does not anticipate any discovery disputes at this time and does not anticipate any motions. Plaintiffs contend that FCA did not raise any concern about Plaintiffs' initial disclosures. (*Id.* at ¶ 7 and Exh. B.) Plaintiffs' argument is without consequence because a meet and confer requirement does not exist in section 871.26.

When the responses are reviewed, to the extent Plaintiffs contend they do not possess documents set forth in subdivision (f), the Court does not have any evidence from which to conclude Plaintiffs' responses are improper. Plaintiffs cannot be expected to produce what they do not possess. Granted it appears incredible that Plaintiffs state they are not in possession of their current vehicle registration, but the issue is that the Court has no basis to conclude Plaintiffs' responses of not possessing documents are untruthful.

FCA also argues that Plaintiff failed to provide complete information in response to subdivision (g) disclosures. The Court finds that Plaintiffs' responses to disclosures required under subdivision (g) are less than forthcoming and provide a basis to award Defendant FCA \$1,500 in sanctions against Plaintiffs' counsel. Subdivision (g)(1) requests the mileage of the motor vehicle as of the initial disclosure date. There is no basis for Plaintiffs to respond that they are conducting a diligent search and reasonable inquiry to locate responsive documents and information. This especially appears to be the case where in responding to subdivision (g)(4) about whether Plaintiffs are still in possession of the vehicle, Plaintiffs responded yes.

In response to the disclosure required by subdivision (g)(7), about whether the motor vehicle has been involved in a collision or accident reported to insurance before the nonconformity and if so, the approximate date, name of insurance company, and any applicable claim number, Plaintiffs again have a response about conducting a diligent search and reasonable inquiry to locate documents and responsive information. But Plaintiffs should be able to answer whether the vehicle has been in an accident before the reported nonconformity that was reported to insurance. Plaintiffs provided a similar response to the request under subdivision (g)(8), about whether the vehicle has any aftermarket modifications. In addition, Plaintiffs responded, "Not applicable," to the disclosure under subdivision (d)(10) about whether Plaintiffs had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request. Plaintiffs' response is less than forthcoming given they are seeking recovery under Song-Beverly.

FCA also takes issue with Plaintiffs responding "not applicable" to the responses under subdivision (g)(3) and (g)(6). Subdivision (g)(3) asks that if the motor vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business. Plaintiffs "not applicable" response is construed as Plaintiffs stating the vehicle is not used for a business purpose. Similarly, Plaintiffs' "not applicable" response to subdivision (g)(6), asking if Plaintiffs are active or prior members of the Armed Forces, is taken as a no.

In light of the above, and Plaintiffs' opposition providing no reason why for many of the initial disclosures of subdivision (g), nonresponsive statements were made, good cause is not demonstrated to deny FCA's request for sanctions.

RULING

Court rules as follows:

1. Grants FCA's request and order Plaintiffs' counsel Strategic Legal Practices, APC to pay FCA sanctions of \$1,500 under Code of Civil Procedure section 871.26, subdivision (j)(1); and
2. Orders FCA, as the prevailing party, to serve formal notice of the Court's ruling.

Dated: September 23, 2026,

Judge Quintana Winter